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Pulaski County ALPR Audit Evaluation

Prepared: August 12, 2026

Scope: Review of Pulaski County Sheriff's Office General Policy 08-018, Policy 43 (Flock Cameras (ALPR)), and two records labeled Six-Month Practice and Usage Data Report. This is a facial review of the supplied documents, not a finding about actual system operation or legal compliance.

Executive conclusion

The Pulaski County records present two separate governance problems. First, the office has two materially inconsistent ALPR policies: a 2021 Arkansas-oriented policy and a 2025 policy that repeatedly governs an Arkansas sheriff's office under Virginia statutes, Virginia procedures, Virginia stop-reporting law, and Virginia FOIA. Second, both supplied statistical documents are labeled six-month reports even though they cover only 29 and 70 days, overlap, omit the two outcome categories required by Arkansas law, and state that the office does not currently track those outcomes.

The most important findings are:

1. Policy 43, effective July 9, 2025, incorporates Virginia Code § 2.2-5517, Virginia State Police procedures, Virginia Code § 52-30.2 stop reporting, Virginia retention law, and Virginia FOIA. It is not a reliable statement of Arkansas ALPR law without correction.
2. The supplied Policy 43 PDF states TOTAL PAGES 6 but contains five PDF pages, raising a completeness question.
3. The 2021 General Policy 08-018 expressly supersedes prior directives, but the 2025 policy does not say whether it supersedes the 2021 policy. The records therefore do not identify which conflicting requirements controlled after July 9, 2025.
4. The December 9, 2025-January 6, 2026 report covers 29 days, not six months. It reports 208,494 scans and 780 alerts.
5. The December 29, 2025-March 8, 2026 report covers 70 days, not six months. It reports 504,711 scans and 1,762 alerts.
6. The reporting periods overlap from December 29 through January 6 but have different start and end dates. The documents do not say whether the later report supersedes, corrects, or supplements the earlier one.
7. Both reports state: The Pulaski Co Sheriff's Office does not currently track this data under match outcomes. They therefore do not provide the number of matches that failed to correlate after investigation or the number resulting in arrest and prosecution.

8. In the later report, 1,652 of 1,762 alerts (93.76%) came from owned or non-owned custom hotlists, including 1,411 non-owned custom alerts. The report identifies categories rather than the actual names and owners of those lists.

Documents evaluated

Record	Date / period	Role
General Policy 08-018, License Plate Reader	Effective June 15, 2021	Arkansas-oriented LPR policy
Policy 43, Flock Cameras (ALPR)	Effective July 9, 2025	Later Virginia-based policy
Six-Month Practice and Usage Data Report	Dec. 9, 2025-Jan. 6, 2026	29-day statistical report
Six-Month Practice and Usage Data Report	Dec. 29, 2025-March 8, 2026	70-day statistical report

Duplicate copies were not counted as separate evidence.

Conflicting policy framework

General Policy 08-018 (2021)

The 2021 policy generally tracks Arkansas requirements. It provides:

- trained users and designated program oversight;
- visual verification for mobile alerts;
- immediate ACIC verification and a call-for-service record for fixed-camera hits;
- seven-day device retention and 150-day server retention;
- the two destruction endpoints for data retained with an investigation;
- shift memoranda and monthly statistics;
- six-month public reports preserved for eighteen months;
- monitored authorized access; and
- interagency sharing only when the data indicates evidence of an offense.

Its weaknesses include no scheduled access audit, vague manual of interest hotlist entries, no required historical-query reason or case number, and no detailed prohibited-use section.

Policy 43 (2025)

Policy 43 contains useful governance concepts:

- official-purpose restrictions;
- protection for lawful speech and activity;
- independent alert confirmation;
- detailed supporting information for manual hotlist entries;
- biannual training;
- 21-day ordinary retention;
- monthly audits sampling at least 5% of queries, downloads, and ALPR stops; and
- monthly sharing-setting verification.

Those concepts are repeatedly tied to the wrong jurisdiction. The policy cites:

- Virginia Code § 2.2-5517 for definitions, purposes, stops, retention, sharing, and auditing;
- Virginia State Police hotlist procedures;
- Virginia Code § 52-30.2 for stop reporting;
- Virginia habeas and civil-action provisions; and
- the Virginia Freedom of Information Act.

The document also omits Arkansas’s six-month public-report requirement and does not state whether it rescinds Policy 08-018. Personnel cannot reliably determine whether the controlling rule is Arkansas’s 150-day framework and public reporting or Virginia’s 21-day framework and nondisclosure rule.

Statistical-report evaluation

Reported totals

Metric	Dec. 9-Jan. 6 report	Dec. 29-March 8 report
Calendar span, inclusive	29 days	70 days
Plates scanned	208,494	504,711
Alerts labeled confirmed matches	780	1,762
Official hotlist alerts	44	110
Owned custom hotlist alerts	92	241
Non-owned custom hotlist alerts	644	1,411
Did not correlate after investigation	Not tracked	Not tracked
Resulted in arrest and prosecution	Not tracked	Not tracked

Neither period is six months. A short-period report can supplement good administration, but labeling it a six-month statutory report does not make it a complete six-month compilation.

Overlapping and unreconciled periods

The first report begins December 9 and ends January 6. The second begins December 29 and ends March 8. They overlap for nine days, yet the later report excludes the first report’s initial 20 days. The documents do not include:

- a report version or supersession statement;
- extraction timestamps;
- daily totals sufficient to reconcile the overlap;
- a correction notice; or
- the actual six-month reporting boundaries.

The reports should not be added together because doing so would double-count the overlap.

Alerts versus confirmed matches

Both reports label total hotlist alerts as confirmed matches. The documents do not identify a human-verification step, ACIC/NCIC confirmation, or outcome reconciliation supporting that equivalence. A vendor alert is not necessarily a confirmed match under the office’s own policies.

Custom hotlist concentration

Source	Dec. 9-Jan. 6	Dec. 29-March 8
Official hotlist share	5.64%	6.24%
Owned custom share	11.79%	13.68%
Non-owned custom share	82.56%	80.08%
All custom-source alerts	94.36%	93.76%

The reports’ topic tables identify generic categories such as Non Owned Custom Hotlist Alert and Custom Hotlist Alert. They do not identify the actual list names, owners, entry criteria, supporting cases, creation dates, expiration dates, or removal controls.

Missing statutory outcomes

Arkansas's reporting framework requires, for checks against lists, the number of confirmed matches, the number that did not correlate after investigation, and the number resulting in arrest and prosecution. Both Pulaski County reports expressly say the office does not currently track the outcome detail.

On their face, the reports therefore do not provide a complete statutory accounting. This conclusion is about the contents of the documents, not about intent or whether outcome records exist in another system.

What the records do and do not establish

Established

- Two materially inconsistent policies are in the supplied record.
- The later policy repeatedly applies Virginia law to an Arkansas sheriff's office.
- The two statistical reports cover short, overlapping periods.
- Both reports omit non-correlation and arrest-and-prosecution outcomes and state that the office does not track them.
- Custom and non-owned custom sources account for most reported alerts.

Not established

- Which policy personnel were instructed to follow after July 9, 2025.
- Whether Policy 43 was formally adopted in the exact five-page form supplied.
- Whether a sixth page exists.
- Whether an actual complete six-month report exists outside the supplied record.
- Whether the alert totals were independently verified.
- Whether any individual search, alert, or sharing event was proper or improper.

Focused follow-up records

1. The complete signed/adopted Policy 43, including the stated sixth page, attachments, and approval history.
2. A written statement identifying which policy controlled after July 9, 2025 and whether Policy 08-018 was rescinded.
3. A corrected Arkansas-specific Flock policy replacing every Virginia reference.
4. Training records showing which policy and legal framework were taught to each user.
5. Every monthly audit required by Policy 43, including 5% samples, exceptions, corrective actions, and sharing-setting reviews.
6. Complete six-month reports using fixed reporting periods and the underlying native datasets.
7. Records tracking non-correlating matches and matches resulting in arrest and prosecution.
8. Actual hotlist names, owners, legal predicates, case/CAD references, creation dates, expiration dates, and removal dates.
9. Export timestamps, report versions, and a reconciliation of the overlapping short-period reports.

Bottom line

Pulaski County should first resolve which policy governs. The operational safeguards in Policy 43 can be retained, but every Virginia citation and procedure should be replaced with Arkansas authority, and the relationship to Policy 08-018 should be explicit. The office should then issue a complete, fixed-period six-month report that distinguishes alerts from verified matches and supplies the two outcome categories it presently says it does not track.

Authority and source integrity

- Arkansas Act 668 of 2025, amending Arkansas Code §§ 12-12-1803 through 12-12-1805.
- Pulaski County Sheriff's Office, General Policy 08-018, effective June 15, 2021.
- Pulaski County Sheriff's Office, Policy 43, effective July 9, 2025.
- PCSO FLOCK Dec 25 - Jan 26.pdf (report text identifies Dec. 9, 2025-Jan. 6, 2026).
- PCSO FLOCK Dec 29, 2025 - March 8, 2026.pdf.

Selected source-file SHA-256 values are maintained in the accompanying evidence manifest.

This report is a records and governance analysis, not legal advice or a finding of misconduct.